

23STCV25496 23STCV25496

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-28

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Patracia Maravilla v. Air Tiger Express USA Inc. et al.

Monday,

September 28, 2026

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO STAY FURTHER
PROCEEDINGS (5049)

I.

BACKGROUND

The first amended complaint ("FAC")

alleges that Defendants hired Plaintiff on August 18, 1999, as a receptionist.

Plaintiff alleges that she was subjected to age discrimination and harassment during her employment and ultimately terminated. The first amended complaint alleges claims in violation of the Fair Employment and Housing Act and a tort claim for wrongful termination in violation of public policy.

Plaintiff

asks for a stay of all material proceedings until final disposition her appeal of the Court's ruling disqualifying her counsel. Alternatively, Plaintiff requests a stay of the Court's order disqualifying her counsel and to permit him to continue representing her, continuing dates for the FSC and trial, and recalculating deadlines for discovery, motion, and trial related deadlines. Plaintiff argues she must first seek a stay at the trial Court level, and if denied, seek appellate relief. Plaintiff contends her appeal has been perfected resulting in an automatic stay of the disqualification order

II. DISCUSSION

The

perfecting of an appeal stays trial court proceedings upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order. (Code Civ. Proc., § 916 subd. (a).) The stay affects “[t]he trial court’s power to enforce, vacate or modify an appealed judgment or order is suspended while the appeal is pending.” (Elsea v. Saberi (1992) 4 Cal.App.4th 625, 629.)

An

appeal from an order denying a motion to disqualify counsel is not subject to an automatic stay because the order is “unquestionably collateral to the merits of the case.” (Reed v. Superior Court (2001) 92 Cal.App.4th 448, 453.) Whether a stay should be granted is at the trial Court’s discretion. (Id. at 455.) If the Court denies the request, the party can seek relief from the appellate Court. (Id.)

In

contrast, an order granting the motion and disqualifying an attorney from continuing to represent a party in ongoing litigation “automatically stays enforcement of the order. Our holding has the incidental (but valuable) benefit of creating a bright line rule. (See Quiles, supra, 10 Cal.App.5th at pp. 142-148, 215 Cal.Rptr.3d 858.) Parties and trial courts now will be on notice that an order disqualifying an attorney is automatically stayed by an appeal. (URS Corp. v. Atkinson/Walsh Joint Venture (2017) 15 Cal.App.5th 872, 887.) Such an order is a mandatory injunction “because it requires affirmative acts that upset the status quo at the time the disqualification motion was filed.” (Id. at 886.)

Defendant

also cites URS for the proposition that the appeal does not automatically stay proceedings because it is collateral. The pinpoint citation discusses URS’s reliance on Reed, supra which involved denial of a motion to disqualify. URS distinguished the situation when the trial court granted the motion to disqualify because that was a mandatory injunction.

The

stay, however, does not automatically

extend to all trial court proceedings in the typical case. (Id. at 888.) URS noted the stay could potentially embrace issues affected by an appeal. In that case, the trial court disqualified counsel "based on its possession and potential use of certain privileged and/or confidential documents. Further trial court proceedings concerning the protected nature of the documents or their permissible use could affect our determination of the disqualification issue and may be subject to the automatic stay." (Id. at 888.)

Defendants

argue they will suffer substantial prejudice if the trial is delayed as they have diligently defended the case and prepared it for trial. Discovery is closed; it should not be reopened. Further, Defendants argue Plaintiff delayed in seeking appellate relief. However, prejudice is not a factor when the appeal is from an order granting disqualification.

Defendants'

reliance on Reed for the proposition that Plaintiff must make a preliminary showing on the merits of the appeal is misplaced. Reed concerned a discretionary stay based on appeal of an order denying the disqualification motion, and therefore, a stay was discretionary. URS says enforcement of the order disqualifying counsel is stayed; whether the rest of the proceedings are stayed is discretionary.

As

Plaintiff observes in reply, the remaining issue is whether the rest of the proceedings should be stayed. URS offered a context in which a discretionary stay of all proceedings would be appropriate, where as here, the reason for disqualification was the use of privileged and confidential documents which the Plaintiff's counsel intended to use "to contradict sworn declarations" that provided justifications for the layoffs, to impeach witnesses and to demonstrate a "pattern of dishonesty." (M.O. 9.2.25, p. 6.) The appeal of the disqualification order affects whether Plaintiff can use the same materials because they are advantageous to her case. Thus, further proceedings should also be stayed.

URS

observed that "[t]he best outcome in this case (and future similarly situated cases) will be for the parties to stipulate to the terms of a stay of trial court proceedings. Trial courts will undoubtedly be receptive if

cooperation proves feasible. Parties in these cases may agree that all or some proceedings should be stayed pending appeal, depending on the particular exigencies of the litigation." (Id. at 890.) The Court urges the parties to meet and confer on this issue.

III. CONCLUSION

Absent

a stipulation between the parties, the Court GRANTS Plaintiff's motion for a stay of all proceedings pending the outcome of Plaintiff's appeal of the order granting disqualification. Reopening discovery and extending deadlines do not automatically follow from the stay. Plaintiff should make the request by motion showing good cause for relief.